

25NWCV00321 25NWCV00321

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Defendant TGL Group, LLCs' Motion

to Vacate Entry of Default and Default Judgment is GRANTED.

Defendant to give notice.

Background

This is a premises liability

action regarding the La Quinta Inn located at 12441 Carson Street, Hawaiian Gardens, California 70716. ("Hotel"). On January 27, 2025, Plaintiff Myrna Lozano ("Plaintiff") filed this action against TGL Group, LLC ("TGL") and Does 1 to 20. The Complaint alleges that Plaintiff suffered injuries from a bug bed infestation at Defendant's Hotel. The Complaint alleges the following causes of action: 1) Negligence - Premises Liability/Failure to Warn/ Negligence Per Se, 2) Nuisance, 3) Intentional Infliction of Emotional Distress, 4) Breach of Contract, and 5) Fraudulent Concealment.

On February 26, 2025, Plaintiff filed a Proof of Service by Substituted Service (hereinafter, "POS").

On August 5, 2025, default was entered as to TGL.

On March 6, 2026, a default prove-up hearing was held. The Court awarded a judgment in favor of Plaintiff in the amount of \$35,000.00, plus cost. (See 3/6/26 Minute Order.)

TGL now moves to 1) quash the

service of summons, and 2) set aside the entry of default and default judgment.

Legal Standard

“The court may, upon motion of the injured party...set aside any void judgment or order.” (Code Civ. Proc., § 473, subd. (d).)

“A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc., § 418.10, subd. (a)(1).) “No default may be entered against the defendant before expiration of his or her time to plead, and no motion under this section, or under Section 473 or 473.5 when joined with a motion under this section, or application to the court or stipulation of the parties for an extension of the time to plead, shall be deemed a general appearance by the defendant.” (Code Civ. Proc., § 418.10, subd. (d).)

“[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. [Citation.]” (Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1444.) “[T]he filing of a proof of service creates a rebuttable presumption that the service was proper” but only if it “complies with the statutory requirements regarding such proofs.” (Id. at pp. 1441-1442.) When a defendant moves to quash service of the summons and complaint, the plaintiff has “the burden of proving the facts that did give the court jurisdiction, that is the facts requisite to an effective service.” (Coulston v. Cooper (1966) 245 Cal.App.2d 866, 868.)

Discussion

“In lieu of personal delivery of a copy of the summons and complaint to the person to be served . . . a summons may be served by leaving a copy of the summons and complaint during usual office hours in his or her office or, if no physical address is known, at his or her usual mailing address, other than a United States Postal Service post office box, with the person who is apparently in charge thereof, and by thereafter mailing a copy of the summons and complaint by first-class mail,

postage prepaid to the person to be served at the place where a copy of the summons and complaint were left.” (Code Civ. Proc., § 415.20, subd. (a).)

TGL moves 1) to set aside the entry of default and default judgment as void, and 2) quash the service of Summons on grounds that the service of the Summons was defective. Specifically, the POS states that the process server effected substitute service on an individual named Eryn Hart, a front desk receptionist at the Hotel who was employed by a temporary staffing agency, not authorized to accept service, and not a person in charge of any office of TGL’s registered agent. (Hart Decl., ¶¶ 10-11, 14, 19-25; Li Decl., ¶¶ 7-10, Yin Decl., ¶¶ 12-17.) Eryn Hart worked for Venus Staffing, who contracted with Hua Mei, the hotel operator—TGL is merely the property owner. (Hart Decl., ¶¶ 2-5, 12-13; Li Decl., ¶¶ 3-12, 15-20; Yin Decl., ¶¶ 2-4, 7-15.) Neither TGL nor its registered agent, Eunjun Yin, maintains an office at the front desk where service was effected.

TGL argues that the primary issue is whether Ms. Hart was a person “apparently in charge” for purposes of Civil Code section 415.20, subdivision (a). TGL cites *Chinese Theater, LLC v. Starline Tours USA, Inc.* (“Chinese Theater”)

(2025) 115 Cal.App.5th 1048 for the proposition that “[the phrase “apparently in charge”] does not extend to just any employee found at a business location, and that the service declarations must reflect some basic facts supporting the conclusion that the recipient was apparently in charge and reasonably likely to deliver the papers to the intended recipient.” (Mot., 4:3-6.)

In opposition, Plaintiff argues that the POS establishes valid service. Specifically, the POS “identifies the defendant served, TGL’s registered agent, the service address, the date and time of service, the front-desk receptionist who received the documents, her physical description, her apparent role, the documents delivered, the advisement concerning the nature of the papers, the same-day mailing, and the process server’s registration information.” (Mot., 4:17-21; Demirdjian Decl., ¶¶ 3-4, Exh. 1.) Plaintiff asserts that whether Eryn Hart had actual authority to accept service is irrelevant. Plaintiff argues that Ms. Hart was the person “apparently in charge”—a reasonable process server could determine that a front desk receptionist was in charge of receiving and delivering papers. Further,

Plaintiff argues that the Summons and Complaint were served the same day via first class mail at the same address. (Demirdjian Decl., ¶¶ 3-4, Exh. 1.) TGL offers no evidence that the service by mail was ineffective.

Lastly, Plaintiff seeks sanctions in the amount of \$3,850.00, the amount incurred for the default prove-up hearing.

In reply, TGL argues that Plaintiff provides no evidence establishing any connection between Eryn Hart and TGL. Further, Plaintiff offers no explanation as to what efforts were made to directly serve Eunjun Yin, the registered process server. Plaintiff fails to distinguish this case to the Chinese Theater case.

The Court finds that the Chinese Theater case is instructive. In that case, the trial court denied the defendant's motion quash service and to vacate the default judgment on the grounds the judgment was void due to improper service of process. (Chinese Theater, *supra*, 115 Cal.App.5th at p. 1052.) The plaintiff's proof of service by substitute service stated that process was served on a person named Roberto Molina, the apparent person in charge, and mail to the defendant's CEO. (Id. at p. 1053.) In support of defendant's motion, the CEO submitted a declaration stating the person served was not a person in charge of defendant's offices and was not an employee, officer, or director of defendant—rather he was a bus washer employed by a related entity. (Id. at p. 1054.)

In reversing the trial court's ruling, the Court of Appeal reasoned the following:

“We conclude the phrase ‘apparently in charge’ cannot reasonably be read to validate service on any employee found at a business location. There must be some indication warranting a finding the employee is someone ‘apparently in charge’ and reasonably likely to deliver the service documents to the intended recipient and the service declarations should reflect some basic facts upon which the finding was made.”

(Id. at p. 1059.)

The Court further notes that the

general rule for substituted service is that “[s]ervice must be made upon a person ‘whose relationship with the person to be served makes it more likely than not that they will deliver process to the named party.’[Citation.]” (Hearn v. Howard (2009) 177 Cal.App.4th 1193, 1203.)

Here, the Court finds that there is a rebuttable presumption that service was proper where Plaintiff filed a verified POS. However, TGL has provided contradictory evidence. Plaintiff has failed to meet her ultimate burden in demonstrating that service was properly effected in light of such evidence. Based on the POS and the evidence presented, the Court finds that it was not reasonable for the process server to serve Eryn Hart where there was no indication that she would deliver the documents to the intended recipient. Similar to the Chinese Theater case, Ms. Hart was not employed by TGL and worked merely as a front desk receptionist. (Hart Decl., ¶¶ 2-; Li Decl., ¶¶ 10-16, Exhs. A-B; Yin Decl., ¶¶ 8-10.) Ms. Hart further declared that the process server never asked whether she worked for TGL and that, at the time, she did not know what TGL was. (Hart Decl., ¶¶ 19-20.) The Court finds that such service is “insufficient to support a conclusion that [Ms. Hart] was apparently in charge of [TGL’s registered agent’s] business office as required by section 415.20.” (See Chinese Theater, *supra*, 115 Cal.App.5th at p. 1060.)

Further, the fact that TGL’s registered agent may have received actual notice via service by first class mail at the same address is irrelevant. (See Chinese Theater, *supra*, 115 Cal.App.5th at p. 1060 [“That [defendant’s CEO] failed to deny he received the duplicate service copies sent to his address by mail, does not change the analysis. Even assuming proper followup [sic] mail service was provided, a proper substituted service must precede mail service under section 415.20 and the record demonstrates this did not occur.”].)

The trial court has a large amount of discretion to set aside a default judgment. (See Benjamin v. Dalmo Mfg. Co. (1948) 31 Cal.2d 523, 525.) Courts favor “orders excusing defaults and permitting controversies to be heard upon their merits.” (Ibid.) The Court thus exercises its discretion to vacate the default judgment as void based on defective service of summons.

Accordingly, TGL’s Motion to Vacate Entry of Default and Default Judgment is granted. TGL’s related request

to quash the purported service of summons is granted.

Plaintiff's request for sanctions
is denied.